

CHAPTER 54*Isle of Man (Customs) Act, 1954***ARRANGEMENT OF SECTIONS****Section**

1. Sugar, molasses, glucose and saccharin.
2. Application of provisions of Customs and Excise Act, 1952, to sugar, etc.
3. Dried fruit.
4. Chicory.
5. Annual duties (continuation).
6. Short title and interpretation.

SCHEDULES:

First Schedule—Duties on Sugar, etc.

Second Schedule—Duties on Dried Fruit.

An Act to amend the law with respect to customs in the
Isle of Man. [30th July, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Sugar,
molasses,
glucose and
saccharin.

1.—(1) Subject to the provisions of this section, there shall, until the first day of August, nineteen hundred and fifty-five, be payable on the removal or importation into the Isle of Man of the goods specified in the First Schedule to this Act duties of customs at the respective rates set out in that Schedule, the rates specified in the second column thereof applying to goods which are not Empire products and the rates specified in the third column thereof applying to goods which are Empire products.

37 & 38 Vict.
c. 46.

(2) Where drawback is allowed on the removal of goods to the Isle of Man and, but for that, the goods would by virtue of section two of the Customs (Isle of Man) Tariff Act, 1874, have been admitted without payment of any duty imposed by this section, the amount of the duty payable under this section on the removal of the goods shall not exceed the amount of that drawback.

15 & 16 Geo. 6.
& 1 Eliz. 2.
c. 44.

(3) Where goods are removed into the Isle of Man from a warehouse approved under section eighty of the Customs and Excise Act, 1952, the amount of any duty payable under this section shall not exceed the duty which would be chargeable

if they had then been delivered from the warehouse for general use in the United Kingdom.

(4) This section shall have effect as from the sixteenth day of June, nineteen hundred and fifty-four.

2.—(1) The following provisions of the Customs and Excise Act, 1952, that is to say—

Application
of provisions
of Customs
and Excise
Act, 1952, to
sugar, etc.

(a) sections two hundred and sixteen and two hundred and seventeen and paragraph (e) of subsection (1) of section two hundred and eighteen (which authorise the Commissioners to remit, or give an allowance or drawback in respect of, United Kingdom duties on sugar, molasses, glucose and saccharin used for certain purposes), and

(b) paragraphs (c) and (d) of subsection (1) of section two hundred and eighteen (which authorise the Commissioners to allow drawback of those duties on the exportation of goods in the manufacture of which sugar, molasses, glucose or saccharin has been used),

shall apply to duties of customs payable on removal or importation into the Isle of Man as they apply to United Kingdom duties and, so far as relates to remission or drawback of any of the said duties under those enactments, or any allowance thereunder, that Act shall apply to the Isle of Man and have effect as if that Island formed part of the United Kingdom.

(2) Section two hundred and fourteen of the said Act (which authorises the Commissioners to charge sugar the polarisation of which has been reduced as if it were sugar of a polarisation exceeding ninety-nine degrees) shall apply to the said duties of customs as it applies to United Kingdom duties.

(3) In paragraph (g) of subsection (1) of section two hundred and twelve of the said Act the reference to the importation, storage and warehousing of saccharin shall include a reference to the removal or importation of saccharin into the Isle of Man, and its storage or warehousing in that Island, and subsections (2) and (3) of that section shall apply accordingly.

(4) Any regulations which have effect under an enactment extended by this section and which are in force at the commencement of this Act shall, subject to any necessary modifications, apply as if they were extended in like manner, but this subsection shall be without prejudice to the power of varying or revoking those regulations.

(5) In this section the expression "United Kingdom duties" means any duties of customs chargeable on importation into the United Kingdom and any duties of excise charged in the United Kingdom.

Dried fruit.

3.—(1) There shall, until the first day of August, nineteen hundred and fifty-five, be payable on the removal or importation into the Isle of Man of goods of the descriptions set out in the Second Schedule to this Act, not being Empire products, duties of customs at the respective rates set out in that Schedule.

(2) This section shall have effect as from the sixteenth day of June, nineteen hundred and fifty-four.

Chicory.

4.—(1) The enactments relating to the duties of customs on chicory and mixtures of coffee and chicory removed or imported into the Isle of Man shall be amended as follows.

(2) In subsection (1) of section seven of the Act of 1933 (which relates to the full rates of duty) rates of 19s. 0d. per cwt. and 3d. per lb. shall be substituted for the rates of 13s. 3d. per cwt. and 2d. per lb. respectively applicable to chicory (raw or kiln-dried) and chicory (roasted or ground).

(3) Section five of the Act of 1919 (which relates to Imperial Preference) shall have effect as if the reduced rates specified in the Second Schedule to that Act were, in the case of chicory (raw or kiln-dried), 16s. 9½d. per cwt. and, in the case of chicory (roasted or ground), 2½d. per lb.

(4) Mixtures of roasted coffee and roasted chicory shall be chargeable with duty at the like rates as roasted chicory.

(5) This section shall have effect as from the fourteenth day of April, nineteen hundred and fifty-four.

**Annual duties
(continuation).**

5.—(1) Subject to the provisions of this section, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following Table, by the respective enactments set out in the second column of that Table, shall continue to be payable until the first day of August, nineteen hundred and fifty-five:—

TABLE

<i>Description of goods</i>					<i>Enactment Imposing Duty</i>
Ale and Beer	...	...	...	...	Section 3 of the Act of 1950.
Cocoa	...	...	...	...	Section 4 of the Act of 1924.
Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.					Section 5 of the Act of 1925.

<i>Description of goods</i>	<i>Enactment Imposing Duty</i>
Hop Oil	Section 3 of the Act of 1929.
Matches	Section 1 of the Act of 1951.
Mechanical Lighters	Section 5 of the Act of 1949, as amended by section 1 of the Act of 1953.
Silk and artificial silk and articles made wholly or in part of silk or artificial silk.	Section 7 of the Act of 1925, as amended by section 8 of the Act of 1926, section 9 of the Second Act of 1932, section 4 of the Act of 1933, section 3 of the Act of 1936, section 3 of the Act of 1937, section 4 of the Act of 1947, and subsection (2) of sec- tion 5 of the Act of 1948.
Spirits	Section 2 of the Act of 1948.
Sweets	Section 3 of the Act of 1949.
Tea	Section 1 of the Act of 1949.
Tobacco	Section 1 of the Act of 1948.
Wines	Section 2 of the Act of 1949

(2) Where any enactment set out in the second column of the foregoing Table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August, nineteen hundred and fifty-five, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force.

6.—(1) This Act may be cited as the Isle of Man (Customs) Act, 1954. Short title and interpretation.

(2) In this Act “Empire product” has the same meaning as in section five of the Act of 1919.

(3) Any reference in this Act to any enactment shall be taken as a reference to that enactment as amended by any subsequent enactment.

SCHEDULES

FIRST SCHEDULE

Section 1.

DUTIES ON SUGAR, ETC.

<i>Article</i>	<i>Full rate</i>	<i>Preferential rate</i>
Sugar—		
Of a polarization:—	s. d.	s. d.
Exceeding—		
99° the cwt.	11 8·0	5 10·0
98° but not exceeding 99° the cwt. ...	11 8·0	4 9·2
97° but not exceeding 98° the cwt. ...	8 7·0	4 7·7
96° but not exceeding 97° the cwt. ...	8 4·3	4 6·3
95° but not exceeding 96° the cwt. ...	8 1·6	4 4·8
94° but not exceeding 95° the cwt. ...	7 10·9	4 3·3
93° but not exceeding 94° the cwt. ...	7 8·2	4 1·9
92° but not exceeding 93° the cwt. ...	7 5·6	4 0·5
91° but not exceeding 92° the cwt. ...	7 2·9	3 11·0
90° but not exceeding 91° the cwt. ...	7 0·2	3 9·6
89° but not exceeding 90° the cwt. ...	6 9·5	3 8·1
88° but not exceeding 89° the cwt. ...	6 6·8	3 6·6
87° but not exceeding 88° the cwt. ...	6 4·6	3 5·5
86° but not exceeding 87° the cwt. ...	6 2·3	3 4·2
85° but not exceeding 86° the cwt. ...	6 0·3	3 3·1
84° but not exceeding 85° the cwt. ...	5 10·3	3 2·0
83° but not exceeding 84° the cwt. ...	5 8·3	3 1·0
82° but not exceeding 83° the cwt. ...	5 6·3	2 11·9
81° but not exceeding 82° the cwt. ...	5 4·5	2 10·9
80° but not exceeding 81° the cwt. ...	5 2·7	2 9·9
79° but not exceeding 80° the cwt. ...	5 0·9	2 8·9
78° but not exceeding 79° the cwt. ...	4 11·1	2 8·0
77° but not exceeding 78° the cwt. ...	4 9·3	2 7·0
76° but not exceeding 77° the cwt. ...	4 7·5	2 6·0
Not exceeding 76°	4 6·0	2 5½
Molasses—		
If containing—		
70 per cent. or more of sweetening matter the cwt.	7 5	3 8½
less than 70 per cent. and more than 50 per cent. of sweetening matter the cwt.	5 4	2 8
not more than 50 per cent. of sweetening matter the cwt.	2 7	1 3½

Article	Full rate	Preferential rate	1st Sch. —cont.
Glucose—	s. d.	s. d.	
Solid the cwt.	7 5	3 8½	
Liquid the cwt.	5 4	2 8	
Saccharin (including substances of a like nature or use) the oz.	7 6	5 7½	

In this Schedule “molasses” includes invert sugar and all other sugar and extracts from sugar which cannot be completely tested by the polariscope and on which duty is not specifically charged under this Schedule as sugar or glucose; and for the purposes of this Schedule the amount of sweetening matter in molasses shall be taken to be the total amount of cane, invert and other sugar contained therein as determined by analysis in manner prescribed by the Commissioners

SECOND SCHEDULE

Section 3.

DUTIES ON DRIED FRUIT

Currants	2s. per cwt.
Figs, dried	6s. per cwt.
Figs, drained or crystallized	7s. per cwt.
Fig cake... ..	7s. per cwt.
Plums, commonly called French plums and prunellos	7s. per cwt.
Plums, dried or preserved, not otherwise described, but not including prunes	7s. per cwt.
Raisins	7s. per cwt.

CHAPTER 55

Television Act, 1954

ARRANGEMENT OF SECTIONS

Section

1. The Independent Television Authority.
2. Powers of Authority.
3. General provisions as to programmes and publications of Authority.
4. Advertisements.
5. Contracts for programmes.
6. Special provisions to be included in contracts.
7. Television broadcasting facilities in respect of certain sporting and other events.
8. Advisory committees.
9. Government control over Authority as to certain matters.
10. General duty of Authority as to finance.
11. Grants by Postmaster-General to Authority.
12. Advances by Postmaster-General to Authority.